TOWN OF THUNDERBOLT
REGULAR MONTHLY MEETING
WEDNESDAY, JANUARY 12, 2022
6:30 PM

REGULAR MEETING

1. **Call to order**

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

3. **Approval of Meeting Agenda**

4. **Approval of Minutes from Previous Meeting**: **page 3 - 11**
   Minutes of November 30, 2021 and December 8, 2021

5. **Presentations:**

   a) Atlantic Waste

   b) Axon Enterprise Inc.

   c) McGriff Insurance

   d) Town Hall and Park Beautification

   e) IT & Cyber Security Plan

6. **Debate Agenda:**

   a) Approval of the Amended T-SPLOST MOU/IGA **page 12 - 32**

   b) Approval of GMA Pension Secretary

   c) Approval of Revised Outdoor Permit Application **page 33 – 37**

   d) Approval of STR Fees **page 38 – 39**

   e) Discussion to Extending the River Drive District

   f) Discussion on Water Rates **page 40 – 46**

7. **Town Administrator Report:** Town Administrator, Bob Milie **page 47 – 49**

8. **Finance Report**: if available

9. **Department Report –** Written Reports Submitted

   by: **Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police** **page 50 – 51**
   Fire –Fire Chief, Andrew Bateman **page 52 – 54**
   Public Works Department – Oscar Crosby, Public Works Manager **page 55 - 65**

10. **Legal Report – Town Attorney**

11. **Mayor and Council –** Written Reports Submitted
    a) Water & Sewer Committee – Council Member Drohan

12. **Executive Session-** Mayor requests a motion and a second to recess into executive session for the purpose of Legal and/or Personnel matters.

13. **Approval of Lease Agreement for Library Building**

14. **Approval of Adding an Additional Employee Holiday**

15. **Elect Mayor Pro-Tem**

16. **Adjournment:**

TOWN OF THUNDERBOLT
COUNCIL WORKSHOP
TUESDAY, November 30, 2021
5:30 PM

1. **Call to order:**

Mayor Goette called the workshop to order at 5:35 pm. In attendance were Mayor Beth Goette and Council Members: Dana Williams, Dave Crenshaw, Larry Ward, John Henry, Brooks Barbaree. Ed Drohan entered the meeting at 5:40 pm. Staff in attendance were Town Administrator, Bob Millie; Town Attorney, Charlie Barrow; Police Chief, Sean Clayton; Fire Chief, Andrew Bateman; Deatre Denion, Clerk of Council; and Katina Spaulding, Acct Payable/Utilities Billing Manager

2. **Approval of the Agenda**

Mayor Goette asked for a motion to approve the agenda. Council Member Ward made the motion to approve the agenda with a second by Council Member Crenshaw. The motion passed unanimously.

3. **2022 Annual Budget Discussion**

Town Administrator Millie. introduced Jen Amerell, the contractor who assisted with the budget. In summarizing he budget he explained there is an increase in stormwater and safety projects. There is an increase for park upgrades. A fleet replacement program has been created. There is a large reallocation for true cost of water and sewer budget. A capital improvement fund has been created in order to have 10,000 per year for Water & Sewer. A Water Conservation fund has been created. In the General Fund, this fund is everything outside of utility billing, has a reduction in revenue due to direct chargers to Water & Sewer.

Mayor and Council budget had an increase due to salary increases for 2022. The remaining budgeting was for new council training. There was some discussion on property liability insurance being too low and what it was covering. Town Administrator Millie stated the cost of the insurance was allocated among the various departments. Council Member Crenshaw asked what was the total cost for liability insurance? The total amount was not available at the time and would be sent out to Council by email. Town Administrator continued explaining there was an increase dues and membership due to joining ICMA and National League of Cities. Mayor Goette stated it increased to $10,000 in General Administration Budget. Town Administrator explained that is the total of all memberships from all departments. The overall General Administration Budget dropped because allocations were added to Utilities to have a true cost.

Under contract services there is an increase for finance consultants, park consultant, and the Town might need an HR consultant. Council Member Crenshaw asked if the $80,000 include landscaping. Town Administrator stated

it was not. The Tidewater contract would be reduced to Victory Drive only. Supplies has an increase to $12,000. The reason for the big increase is due to the budget amount 2019 and 2020 was what was spent.

Pg. 7 - General Building and Plants – Year 2020 was high. There were previously completed job but were not paid for until this year. There are currently A/C, roof and general upgrades going on now. The $52,220 does not take into consideration maintenance issues for the library. Town Administrator Millie stated he did not know what the library cost will be, but it needs to be included in the rent.

Pg. 8 - Municipal Court. The part-time assistant position has been removed. There has been a salary modification. There is an increase in equipment cost.

Pg. 9 - Police. There is a salary and wage increase. Salary adjustments were made but there are two vacancies. Mayor Goette asked about Contract Services. Body cameras, tasers, Leads Online Contract, investigated tool fall into this line item. Mayor Goette asked about the increases in the 2019 and 2020 budgets. Town Administrator Millie explained Leads Online was a new contract in 2019. Council Member Crenshaw asked if the officers were still carrying their own rifle. Police Chief Clayton stated some are but they are purging the property room. There will be a petition to destroy but they are not being destroyed. They are being sold. Ed's Public Safety is the contractor and they will give the Town a credit. Police is in good shape with ammunition.

Pg.10 - Fire. There are minimal changes in salary due to a separation of a 56-hour employee with certification of a firefighter working 40 hours. Mayor Goette asked if workman's comp cover this fire fighter doing work outside of his job description. Town Administrator Millie stated he will check with the insurance company.

Pg 11 - Streets. There is a reduction in salaries though allocating of direct cost. Contract services has gone down. There is more inhouse maintenance. Funding has been shifted some to stormwater maintenance and pavement. We are going off what has been done in the past. There might be a need to charge to Water & Sewer. The Town has to find a way to address streets if T-SPLOST is not passed. Council Member Williams asked about speed bumps. Town Administrator Millie explained it is in under pavement maintenance. Mayor Goette asked how much were the speed bumps. Town Administrator Millie stated they are estimated $4,000 to $6,000.

Pg 12 – Senior Citizens. Council Member Crenshaw asked about dues and memberships or $24,000. Town Administrator Millie stated there is a reduction due to renegotiation due to less participation from Thunderbolt residents.

Pg 13 – Recreation – There is an increase for maintenance. There is $15,000 to put some love into the parks. New plants, mulch, sand blocks and tree work. Council Member Crenshaw stated we need to bring back the arborist to insure any dangerous trees are addressed. Council Member Ward suggested increase contracts for trees around town. Town Administrator Millie stated that would be in streets budget.

Pg 14 Museum – This is down 71%. The town is using tax payer money to off set a 503 C. Town Attorney Barrow stated there is fine line between giving in kind to an entity that provides a service, and giving funding to a 503 C. The Town is in a contract with an entity that does not exist right now. Town Administrator Millie and Town Attorney Barrow are in discussion with the Museum on the lease and the budget connected to the support.

There is now a capital saving to create a Capital Budget. Town Administrator Millie stated he would like to see more but this is a start. This budget consists of $15,000 for Police. $10,000 is for a non-SPLOST car to be purchased at late in the year. Council Member Crenshaw stated the Town has a rainy-day fund and it should be reallocated. Town Administrator Millie stated the Town needs to plan like there are no grant funds. $232,000 will comes out of the rainy-day fund and $100,000 will remain.

Security and IT – The budget shows funding for an A/C for the server. There has been a discussion on best way to redo website. The website can be used to stream line process for permits and applications.
Police will need portal radios for the new 911 System upgrade. Police also has funding for a Rapid ID for the field and rifles. There is a small reduce a for vest since some were purchased this year.

Fire needs new gear to be purchased and a security system. John Henry asked about the Fire House Grant. Fire Chief Bateman stated the Town did not receive it this year. Portal radios are also needed in Fire due to 911 system upgrade. There is a need to replacement the bay door motors, heaters and floors.

Pg 20 - Water and Sewer Utility Fund. The is a reallocation for salaries and $100,000 for capital fund. There is a need to look at rates since the current rates will not cover this budget. The increase scheduled for February will not cover the increase. There is now a line item of $20,000 for Water Conservation. The capital improvement budget is about $10,000 to redo wells and $31,000 to camera and reline sewage lines. There is a line item for equipment rental.

There were no further questions on the budget. Ms. Amerell stated the Town is in good financial shape.

4. **Short Term Vacation Rentals (STVR) Discussion**

Town Attorney Barrow stated there have been a couple of changes made to the ordinance. Council needs to fill in how many are to be allowed. Council Member Ward stated Thunderbolt is not Tybee. There should be no more than 70. Council Member Barbaree asked about the permit process. What is considered active? Town Administrator Millie stated the first 90 days will be just for existing, no new permits. Council Member Barbaree stated there is a court case in Forsyth concerning what can be asked of STR. Town Attorney stated that case was for all rentals. Council Member Barbaree asked how would the Town verify owner occupied. It was stated staff can use home exemption. Council was in agreement to use 70 as the limit for STRs.

Mayor Goette asked for a motion to move into Executive Session**. Council Member Crenshaw made the motion with a second from Council Member Williams. The motion passed unanimously.**

5. **Executive Session-** Mayor requests a motion and a second to recess into executive session for the purpose of Legal and/or Personnel matters.

Mayor Goette asked for a motion to enter into open meeting. Council Member Drohan made the motion with a second from Council Member Williams. The motion passed unanimously.

Mayor Goette asked for a motion to adjourn. Council Member Ward made the motion to adjourn with a second from Council Member Williams. The motion passed unanimously.

6. **ADJOURNMENT:**

The meeting adjourned at 9:36 pm.

DRAFT

TOWN OF THUNDERBOLT
REGULAR MONTHLY MEETING
WEDNESDAY, DECEMBER 8, 2021
6:30 PM

PUBLIC HEARING – Adoption of 2022 BUDGET

Note: December 4, 2021 Published Advertisement

Mayor Goette called the public hearing to order at 6:11 pm. Town Administrator Milie provided an overview of the 2022 balanced budget. budget. The total general budget is $2,612,158. The Water and Sewer 2020 Budget is $2,28,650. This increase is to account for true cost of water. The were no questions from the public. The public hearing adjourned at 6:28 pm.

REGULAR MEETING

1. **Call to order**

   Mayor Goette called the regular scheduled meeting to order at 6:30 pm.

   Those in attendance were Mayor Beth Goette and Council Members Dana Williams, David Crenshaw, Larry Ward, Ed Drohan, John Henry and Brooks Barbaree. Staff in attendance were Town Administrator, Bob Milie; Town Attorney, Charlie Barrow; Police Chief, Sean Clayton; Fire Chief, Andrew Bateman; Public Works Manager, Oscar Crosby; Clerk of Council, Deatre Denion; Customer Service, Renee Holmes; and Acct Payable/Utilities Billing Manager, Katina Spaulding.

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

3. **Approval of Meeting Agenda**

   Mayor Goette stated the Budget Adoption will be moved after Executive Session and asked for a motion to approve the agenda. **Council Member Ward made the motion to approve the agenda with a second from Council Member Williams. The motion passed unanimously.**

4. **Approval of Minutes from Previous Meeting**:
   Minutes of November 10, 2021

   Mayor Goette asked for a motion to approve the November meeting minutes. **Council Member Ward made the motion to approve the November 10, 2021 meeting minutes. Council Member Crenshaw made the second. The motion passed unanimously.**

5. **Consent Agenda:**

   a) Approval to Renew Subscription to LEADS Online
   b) Approval of Georgia Powers Easement Request

Council Members pulled Axon Enterprise, T-SPOST MOU, Tidewater Contract, 2022 Alcohol Renewals and Outdoor Permit Renewals from the consent agenda. **Council Member Drohan made the motion to approve the consent agenda with a second from Ward. The motion passed unanimously.**

6. **Debate Agenda:**
   a) Approval of Axon Enterprise Inc. Contract for Police Tasers

   Council Member Henry asked if there was a bid. Town Administrator Millie stated this is a renewal. Council Member Henry asked what does the Town get for $1700. It was explained the Taser, body cam, and cloud storage is the items covered. Council Member Drohan asked about liability insurance. If the Town did not have this contract, how would it would affect the cost of the liability insurance. Police Chief Clayton stated some federal funding aid will not be given without this contract. Council Member Drohan would like to see the amount it saves. Council Member Drohan asked when does the current agreement expire. Police Chief Clayton stated March, but the Quote expires December. Police Chief Clayton explained this equipment is all cloud based. Officers are able to email footage to the District Attorney. Council Member Ward stated you can't put a price on officer's safety. Council Member Drohan stated there should be more wiggle room with these bids. Council Member Crenshaw asked if there was a kill clause. Council Member Williams stated this was pretty good deal. This quote includes more than tasers. Council Member Williams asked if the other communities use this company. Police Chief Clayton stated most do. Mayor Goette called to question. **Council Member Williams made the motion to approve the contract with a second from Council Member Crenshaw.** Council Member Drohan stated he would still like to see those numbers. **The motion passed five to one. Council Member Henry opposed.**

   b) Approval of T-SPLOST MOU/IGA

   Town Administrator Milie explained this MOU/IGA is part of a referendum vote for 2022 T-SPLOST. This funding will be divided among the communities. This funding will only be for transportation. Mayor Goette stated this is different than what was previously told in the meetings. She pointed out page 4. She was concerned with One Chatham not being explained who One Chatham includes and she was concerned with the procedure for disbursement. Town Administrator Milie explained the disbursement procedure was lobbied by smaller communities. Looking at 5 c. Thunderbolt is to receive 1.08%. In the talks it was to be 1.17%. Town Administrator Milie explained tier one projects were for those bigger projects that benefit all. It was asked if T-SPLOST can be used for the election. Town Administrator Milie did not think so. Town Attorney Barrow stated if it is not in Exhibit A it cannot. Mayor Goette stated the Town needs to know the cost of the election. Mayor Goette asked about the other entities' agreements. Town Administrator Milie stated that would be for maybe Bryan or Effingham County. This would not affect the Town's funding. Council Member Williams stated it goes back to 5 b. Paragraph 8 offers option of bonds. A number needs to be added before approval. Town Administrator Milie stated the Town needs to have the ability; it does not mean we do a bond. Council Member Crenshaw stated the Town should have the option. **Council Member Drohan made the motion to approve the agreement with a second by Council Member Henry. The motion amended to include the option to bond a portion up to 2 million. Henry seconded.** Council Members Ward and Williams felt it should be 3 million. **Council Member Drohan agreed to accept the amendment with Council Member Henry second. The motion passed unanimously.**

   c) Approval of Tidewater Amended Contract

   Town Administrator Milie stated this amendment is to only have Tidewater work on Victory Drive. The other areas to be completed in house. This amendment will also be back up if staff gets over whelmed. This a $60,000 annual cost. Council Member Drohan asked what is the objected comparable if this works. The cost savings are about $15,000. Council Member Drohan asked for a line item to comparison at the

end of the year. Council Member Henry asked if this went out to bid. Town Administrator stated it is an amendment to the current contract. There was a discussion of killing the contract completely and bid jus the Victory Drive section. **Council Member Henry made a motion to pull the kill clause. Council Member Ward seconded the motion. The motion passed unanimously**.

d) Approval of 2022 Alcohol Licenses Renewals

Mayor Goette had concerns with some of the state corporation names not matching the application. Town Attorney Barrow stated that is not an issue. They do not have to be a state corporation to have an alcohol license. The application for Jigar Inc. was of concern since they had a license but it has lapsed. **Council Member Ward made the motion to approve all 2022 Alcohol Licenses with exception of Jigar Inc. Council Member Crenshaw seconded the motion. The motion passed unanimously.**

Council Member Drohan made a motion to conditionally approve Jigar when paperwork is provided of payment of State License and they need to come to Council in January to explain the circumstances. Council Member Ward seconded the motion. Motion passed unanimously.

e) Approval of 2022 Outdoor Permits Renewals

There was a discussion of having a off duty police officer when alcohol is served. The application states the requirement but the argument was these entities already serve alcohol without other activities going on. Council Member Henry stated staff needs to ensure they applicants follow the ordinance. **Council Member Ward made the motion to approve the 2022 Outdoor Permit renewals. Council Member Drohan seconded the motion. The motion passed unanimously.**

f) **Petitioner:** Harold Cleveland
Request: Approval of Conditional Use of two dwellings
Parcel Involved: 3-0004-13-009
Location: 2707 Mechanics Ave
P & Z unanimously approved petition

Mr. Harold Cleveland is buying 2707 Mechanics Ave. The property is next to his son and family. This has encouraged them to invest in the area. He would like to make the garage into a studio apartment. There will be no to change the footprint. He plans to invest $110,000 for the entire project. A third of the $110,000 will go towards the garage. Mayor Goette asked if this would be long term or short term. Mr. Cleveland stated that had not been decided. Council Member Ward asked how much square footage does the garage have. Mr. Cleveland stated it is 364 sq.ft. Council Member Henry asked about setbacks. Town Attorney Barrow stated the footprint is not changing. Mayor Goette asked about the siding. Mr. Cleveland stated he believes it is a T1-11. Council Member Ward asked if they plan to build a garage in the future. Mr. Cleveland stated not as of now. **Council Member Drohan made motion to approve the request. Council Member Ward seconded the motion. Motion passed unanimously.**

7. Approval of 2022 Home Occupation Licenses Renewals

Town Administrator Milie stated International Dunnage has withdrawn their permit request. It was decided Hona's two homes are not a Home Occupation but a regular business license. **All the other Home**

Occupation Application Renewals were approved by a motion by Council Member Ward with a second by Council Member Williams. The motion passed unanimously.

8. Approval of Lease for the Old Library Building

Victory Pelogreno with Victory Grips stepped forward to present his business and possible renting the old library building. Mr. Pelogreno explained the business is growing and they need a bigger space. There is no build out necessary. There are only four employees. No more than a total of 6 cars. There will be UPS shipments delivered. There will be no events held at this location. The hours of operation is from 8:30 to no later 5:30. It was asked how many shipments do they receive. Mr. Pelogreno stated they have weekly large boxes delivered. They ship out by USPS. The shipments are dropped off at Post Office. There could be 20 packages send out a day by DHL. There is only one pick up a day. Mayor Goette expressed concerns on where the delivery trucks would park.

9. Approve 2022 Budget Resolution and Adoption of 2022 Budget – moved to after Executive Session

10. **Finance Report**: if available

There was no Financial Report. Town Administrator Milie introduced Shannon Brett with Holland, Bromley, Barnhill & Brett. They are the CPA Consultants hired to help the Town out with Finances while the position is vacant.

11. **Department Report –** Written Reports Submitted

by: Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police
Fire –Fire Chief, Andrew Bateman
Public Works Department – Oscar Crosby, Public Works Manager

Mayor Goette asked Public Works Manager Crosby about the water usage for Senior Citizens Building. Mr. Crosby stated there was a faucet left on.

12. **Legal Report – Town Attorney**

a) Second Reading of No Thru Trucks

Town Attorney Barrow stated no changes have been made since last presentation**. Council Member Williams made the motion to approve the No Thru Trucks Ordinance with a second by Council Member Henry.**

Mr. Donnally, from the next-door business asked why are they hoping to pass this ordinance. Town Administrator Milie explained there were issues with large trucks using small streets instead of main thoroughfares in Thunderbolt. Deliveries can be made by utilizing Bannon when they are delivering to Bannon. Signs will be posted and there will be a 30-day warning period. Mr. Donnally asked what size trucks are they addressing this ordinance. Town Attorney Barrow stated more than 36 feet long or those with six wheels.

Harold Lyons – River Supply – stated the ordinance seemed to be vague. Town Attorney Barrow stated the ordinance is specific. Mayor Goette points out since 2004 there have been weight limits on streets. Mr. Lyons stated he is not sure how it will be enforced. Chief Clayton stated the officers will pull trucks over on Bannon and ask for destination proof. Council Member Williams stated businesses do not see how trucks are using Bannon Drive as a cut through. He has been run off the road and the church has had its mailbox run over several times. Speed bumps have since been placed on Bannon Dr. Council Member Drohan stated this ordinance will not hinder your business. This is designed to change behavior.

Steven Lyons – River Services – asked if there is a map of the preferred routes, they could pass out to their truck drivers. Town Administrator Milie stated he will meet with everyone and share any information the Town creates.

The motion passed unanimously.

b) Second Reading of the Hotel/Motel Tax

Town Attorney Barrow stated this is the model ordinance provided by GMA. Passing of this ordinance is required if the Town is going to receive the tax from STRs. **Council Member Henry made the motion to approve the ordinance with a second by Council Member Williams. The motion passed unanimously.**

c) Second Reading of the Short-term Rental Ordinance

Town Attorney Barrow explained the Council agreed to set the limit for STRs at 70 initially. Mayor Goette stated she still has concerns with Boarding House, Bed & Breakfast. Council Member Henry made the motion to approve the STR Ordinance with a second by Council Member Williams. Alderman Elect Bethany Skipper pointed out 6.302 asked for a state tax number. It should be modified if taxes are collected by another entity. **Council Member Henry made the motion to accept STR ordinance with the addition to add the suggested verbiage to 6.302. Council Member Williams seconded the motion. The motion passed unanimously with Council Member Drohan recusing himself.**

13. **Mayor and Council –** Written Reports Submitted
    a) Water & Sewer Committee – Council Member Drohan

Council Member Williams made a motion in order to honor Beth Goette's 21 years of dedicated services as Mayor and Council Member by naming the old library after her. Council Member Henry second the motion. The motion passed unanimously.

Council Member Drohan asked for Council to consider having businesses with visitor's coming from outside of Thunderbolt should be required to have low-flow plumbing fixtures.

Mayor Goette asked for a motion to move into Executive Session. **Council Member Ward made the motion with a second by Council Member Williams. The motion passed unanimously.**

14. **Executive Session-** Mayor requests a motion and a second to recess into executive session for the purpose of Legal and/or Personnel matters.

Mayor Goette asked for a motion to move from Executive Session into the regular meeting. **Council Member Ward made the motion with a second by Council Member Williams. The motion passed unanimously.**

Mayor Goette asked for a motion to adoption the 2022 Budget. **Council Member Ward made the motion to approve the budget with a second Council Member Drohan. The motion passed unanimously.**

Council Member Henry made the motion to have staff move forward with the leasing of the library to Victory Grips. The motion was seconded by Council Member Ward. The motion passed unanimously.

Council Member Drohan asked members of council to rise and applaud Mayor Beth Goette for her service to Thunderbolt.

Mayor Goette asked for a motion to adjourn the meeting. **Council Member Ward made the motion with a second by Council Member Crenshaw. The motion passed unanimously.**

15. **Adjournment:**

DRAFT

Meeting adjourned at 10:45 pm.

DRAFT

STATE OF GEORGIA)
COUNTY OF CHATHAM)

INTERGOVERNMENTAL AGREEMENT
FOR THE USE AND DISTRIBUTION OF PROCEEDS FROM THE 2022
TRANSPORTATION SPECIAL PURPOSE LOCAL
OPTION SALES TAX FOR CAPITAL
TRANSPORTATION PROJECTS

THIS AGREEMENT (this **Agreement)** is made and entered this the ___ day of _____, 2022, by and between Chatham County, a political subdivision of the State of Georgia (the **County),** and the Mayor and Council of the town of Thunderbolt, a municipal corporation, the Mayor and Council of Bloomingdale, a municipal corporation, the Mayor and Council of Garden City, a municipal corporation, the Mayor and Council of Port Wentworth, a municipal corporation, the Mayor and Aldermen of Savannah, a municipal corporation, the Mayor and Council of Tybee Island, a municipal corporation, the Mayor and Aldermen of Vernonburg, a municipal corporation, the Mayor and Council of Pooler, a municipal corporation, and all political subdivisions of the State of Georgia (hereinafter the "Municipalities" or "Cities") and herein collectively referred to as the "Governing Authorities". acting pursuant to validly adopted resolutions by their respective governing bodies. The County and the Municipalities do hereby agree as follows:

WITNESSETH:

WHEREAS, Article 5A of Chapter 8 of Title 48 of the Official Code of Georgia Annotated, as amended (the "Act"), authorizes the imposition of a single county Transportation Special Purpose Local Option Sales and Use Tax (the "TSPLOST") to fund authorized transportation purposes for the use and benefit of the County and qualified municipalities within the County; and

WHEREAS, the governing authorities of the County and the Municipalities met together on _____, 2021 to discuss possible projects and purposes for inclusion in the TSPLOST referendum in substantial conformity with the requirements of Section 48-8-262(a)(2) of the Act; and

WHEREAS, the County and Cities have negotiated a division of the **TSPLOST** to be collected in the event a majority of the votes cast in the election are in favor of imposing the TSPLOST; and

WHEREAS, the County may enter into agreements with the other municipalities in the County providing for the distribution of a portion of TSPLOST proceeds to such other municipalities to fund allowable capital outlay projects as authorized by the referendum to be held on May 24th, 2022, if passed; and

WHEREAS, the County, and the Municipalities, and all citizens of the County will derive substantial benefits from the proposed projects to be funded by TSPLOST proceeds distributed pursuant to this Agreement; and

WHEREAS, the County and the Municipalities desire to execute an intergovernmental agreement

memorializing their agreement on the levy of the TSPLOST and the rate of such tax; and

NOW THEREFORE, in consideration of the premises and undertakings hereinafter set forth, it is agreed by and between the County and the Municipalities as follows:

All recitals above are incorporated by reference into the body of this agreement.

Section 1. Representation of the Parties. Each party hereto makes the following representations and warranties which are specifically relied upon by all other parties as a basis for entering into this Agreement:

(a) The County agrees that it will take all actions necessary to call an election, to be held in all the voting precincts in the County on the 24th of May, 2022, for the purpose of submitting to the qualified voters of the County for their approval, the question of whether or not a TSPLOST of one percent shall be imposed on all sales and uses subject to the sales and use tax in the special district of Chatham County, as authorized by the Act for up to five years (20 calendar quarters) commencing on the 1st of October, 2022 for the purpose of funding specified Projects (hereinafter more fully referred to and defined), and whether or not the County shall be authorized to issue general obligation debt in the principal amount of $50,000,000 to finance certain of the Projects. The amount of money to be raised by the TSPLOST is estimated to be $420,000,000 (Four Hundred and Twenty Million Dollars). (and add any city that wants to have a bond)

(b) The Municipalities are legally chartered municipal corporations as defined by law and judicial interpretation and are each a "qualified municipality" as such term is defined in the Act. During a public meeting of its governing board, each conducted in compliance with the Open Meetings Act, O.C.G.A. § 50-14-1, et seq., each of the Municipalities validly approved the execution of this Agreement.

(c) The County is a political subdivision of the State of Georgia created and existing under the Constitution and laws of the State. During a public meeting conducted in compliance with the Open Meetings Act, O.C.G.A. § 50-14-1, et seq., the County approved the execution of this Agreement.

(d) It is the intention of the County and the Municipalities to comply in all respects with O.C.G.A. § 48-8-260 et seq., and all provisions of this Agreement shall be construed in light of O.C.G.A. § 48-8-260, et seq.

(e) This Agreement is a valid, binding, and enforceable obligation of the County and the Municipalities; and

(f) The Cities are located entirely or partially within the geographic boundaries of the special tax district created in the County.

Section 2. Conditions Precedent. The obligations of all parties under this Agreement are conditioned upon the following prior events:

(a) The adoption of a resolution by the Board of Commissioners of Chatham County authorizing the imposition of the TSPLOST and calling the necessary election in accordance with the provisions of Section 48-8-262(d) of the Act.

(b) The approval of the TSPLOST by a majority of the voters in the County voting in the election (for those purposes) to be held in accordance with the provisions of Section 48-8-263 of the Act.

(c) This Agreement is further conditioned upon the collection of TSPLOST revenues by the State of Georgia Department of Revenue and its transfer of the same to the County for appropriate distribution to the Municipalities.

Section 3. Rate of Tax; Estimated Amount; Effective Date and Term of the Tax. The TSPLOST, subject to approval in an election to be held on the 4th of May, 2022, shall be imposed at the rate of one percent (1%). The total estimated dollar amount is $420,000,000 (before deduction of collection fees by the State of Georgia Department of Revenue and management expenses by Chatham County), which shall be the maximum amount to be raised by the TSPLOST. The maximum period of time for which the tax may be imposed is five years, beginning on the 1st of October, 2022.

Section 4. Effective Date and Term of This Agreement. This Agreement shall commence upon the date of its execution and shall terminate upon the latter of:

(a) The official declaration by the Board of Elections and Registration of Chatham County of the failure of the election described in this Agreement; or

(b) The expenditure by the County and the Municipalities of the last dollar of money collected from the TSPLOST even if such expenditure is made after the expiration of the TSPLOST collection period.

Section 5. Restrictions as to Use of Tax Funds

A. The Cities and the County shall comply with all requirements of Georgia law pertaining to all TSPLOST funds each receives, including but not limited to the following:

(i) All TSPLOST funds and interest received may only be used for projects described in Exhibit A which is attached hereto and made part of this Agreement.

a. If circumstances arise which dictate that a project which initially seemed feasible is no longer so, then the governing body to which the TSPLOST funds for such project was allocated under this Agreement may use its lawful

discretion to make adjustments in its plan of capital projects.

b. In the event that the cost to complete a project is less than the amount allocated to that project (the "Projects"), under this Agreement, then the governing body to which the TSPLOST funds for such project were allocated may use its lawful discretion to make adjustments in its plan of capital projects to utilize the funds for other projects provided for in this Agreement.

c. The lack of funds to complete a project contained on Exhibit A by any governing authority is not grounds to deem the project infeasible.

(ii) All TSPLOST funds received shall be accounted for in a separate fund as more fully described herein and not commingled with other monies prior to expenditure for allowable uses.

(iii) Interest earned from the investment of TSPLOST funds prior to their disbursement for allowable expenditures shall be considered TSPLOST funds and used under the same restriction for TSPLOST funds as set forth in subparagraph (i) above.

(iv) No TSPLOST funds received may be used for general operating expenses. TSPLOST funds may be used to repay loans made to temporarily fund TSPLOST capital projects in anticipation of receipt of TSPLOST funds.

B. The County and Cities agree to proceed with the acquisition, construction, design, permitting, equipping and installation of the projects specified in Exhibit A of this Agreement, subject to the availability of funds.

C. The County and Cities agree to maintain thorough and accurate records concerning receipt of TSPLOST proceeds and expenditures for each project undertaken as required to fulfill the terms of this Agreement.

D. If after 5 years the collection of TSPLOST fund net proceeds falls short of the $420,000,000 anticipated, the County and the Cities agree to only receive their pro rata share of the income based on the division percentages in Section 8 (c).

E. If after 5 years or after reaching the $420,000,000 of the collection of TSPLOST funds net proceeds are greater than the $420,000,000 anticipated, the County and the Cities agree to divide the excess funds as to their pro rata share of the income based on the division percentages in Section 8(c).

Section 6. <u>Purposes and Projects, Priority and Order of Funding</u>.

(a) In recognition of the need for transportation improvements across the County and the Municipalities, the parties agree that the total net proceeds ($420,000,000) shall be utilized for the following transportation purposes (the "Purposes"): roads, trails, roundabouts, sidewalks, traffic signals, Chatham Area Transit, One Chatham, drainage, resurfacing, and all accompanying infrastructure and services necessary to provide access to these transportation facilities.

(b) The transportation projects to be funded in whole or in part from TSPLOST proceeds (the "Projects"), are listed in Exhibit A which is attached hereto and made part of this Agreement.

(c) All Projects and Purposes described herein shall be funded from TSPLOST proceeds as provided in this Agreement, and as specified in Exhibit A. No party shall be obligated to fund any Project or Purpose from revenues other than TSPLOST collections. Each party shall have the sole discretion to reduce the scope of a Project in the event of a funding shortfall.

Section 7. **TSPLOST Funds; Separate Accounts; No Commingling.**

(a) A special fund or account shall be created by the County and designated as the 2022 Chatham County Transportation Special Purpose Local Option Sales Tax Fund (the "County TSPLOST Fund"). The County shall select a local bank which shall act as a depository and custodian of the County TSPLOST Fund upon such terms and conditions as may be acceptable to the County.

(b) Each Municipality shall create a special fund to be designated as the 2022 [*Municipality name*] Transportation Special Purpose Local Option Sales Tax Fund (each a "Municipal TSPLOST Fund"). Each Municipality shall select a local bank which shall act as a depository and custodian of the TSPLOST proceeds received by each Municipality upon such terms and conditions as may be acceptable to the Municipality.

(c) All TSPLOST proceeds shall be maintained by the County and each Municipality in the separate accounts or funds established pursuant to this Section. TSPLOST proceeds shall not be commingled with other funds of the County or the Municipalities and shall be used exclusively for the purposes detailed in this Agreement. No funds other than TSPLOST proceeds shall be placed in such accounts.

Section 8. Procedure for Disbursement of TSPLOST Proceeds.

(a) Upon receipt by the County of TSPLOST proceeds collected by the Georgia Department of Revenue, the County shall promptly deposit said proceeds in the County TSPLOST Fund. The monies in the County TSPLOST Fund shall be held and applied to the cost of acquiring, constructing, and installing the Transportation Projects for the County listed in Exhibit A or, where applicable, disbursed to the Municipalities as provided in subsections (b) and (c).

(b) All funds received by the County from the Georgia Department of Revenue from the imposition of the TSPLOST shall be apportioned by the County according to the figures provided herein. The figures set forth herein are binding and not subject to change or modification except upon written agreement by all parties. The County, following the deposit of the TSPLOST proceeds in the County TSPLOST Fund, shall, within 10 business days, disburse the TSPLOST proceeds due to each Municipality according to subsection (c). The proceeds shall be promptly deposited in the separate funds established by each Municipality in accordance with Section 7 of this Agreement. The monies in each Municipality's TSPLOST Fund shall be held and applied to the cost of acquiring, constructing, and installing the Municipal Transportation Projects listed for that Municipality in Exhibit A.

(c) The parties will divide the monthly actual proceeds as follows:

1. Chatham County – 45.3100%
2. City of Savannah – 34.6007%
3. Pooler – 7.6565%
4. Garden City – 4.3891%
5. Port Wentworth – 4.6417%
6. Tybee Island – 1.3824%
7. Bloomingdale – 0.8426%
8. Thunderbolt – 1.1028%
9. Vernonburg – 0.0742%

Section 9. Project Monitoring, Record-Keeping and Reporting, Audits.

(a) All parties to this Agreement shall promptly move forward with the acquisition, construction, equipage and installation of the Projects in an efficient and economical manner and at a reasonable cost in conformity with all applicable laws, ordinances, rules and regulations of any governmental authority having jurisdiction over the Projects.

(b) The governing authority of the County and the governing authority of each of the Municipalities shall comply with the requirements of O.C.G.A. § 48-8-269.5(a)(2), which requires that certain information be included in the annual audit of the County or each of the Municipalities. During the term of this Agreement, the distribution and use of all TSPLOST proceeds deposited in the County TSPLOST Fund and each Municipal TSPLOST Fund shall be audited annually by an independent certified public accounting firm. The County and the Municipalities agree to cooperate with the independent certified public accounting firm in any audit by providing all necessary information. Each Municipality shall provide the County a copy of its annual audit.

(c) The governing authority of the County and the governing authority of each of the Municipalities shall comply with the requirements of O.C.G.A. § 48-8-269.6, which requires the publication of annual reports concerning expenditures for the Projects.

(d) The County and Municipalities agree to maintain thorough and accurate records concerning receipt of TSPLOST proceeds and expenditures for each Project undertaken by the County or respective Municipality as required to fulfill the terms of this Agreement.

Section 10. Completion of Projects.

(a) The County and the Municipalities acknowledge that the costs shown for each Project described in Exhibit A are estimated amounts.

(b) If a County Project has been satisfactorily completed at a cost less than the estimated cost listed for that Project in Exhibit A, the County may apply the remaining unexpended funds to any other County Project in Exhibit A.

(c) If a Municipal Project has been satisfactorily completed at a cost less than the estimated cost listed for that Project in Exhibit A, the Municipality may apply the remaining unexpended funds to any other Project included for that Municipality in Exhibit A.

(d) The County and the Municipalities agree that each approved TSPLOST Project associated with this Agreement shall be substantially completed or started within five years after the termination of the TSPLOST collection period. Any TSPLOST proceeds held by a County or Municipality at the end of the five-year period which is not already designated to be spent on a project in Exhibit A, be measured from the date of termination of the TSPLOST agreement shall, for the purposes of this Agreement, be deemed excess funds and disposed of according to O.C.G.A. § 48-8-269.5(f)(2).

Section 11. Certificate of Completion and Termination. Within thirty (30) days after the acquisition, construction or installation of a Municipal Project listed on Exhibit A is completed, the Municipality owning the Project shall file with the County a certificate of completion signed by the mayor or other chief elected official of the respective Municipality, setting forth the date on which the Project was completed and the final cost of the Project. The County shall file a completion certificate of County projects with the Chatham County Board of Commissioners.

Section 12. The County Debt.

(a) The TSPLOST election ballot shall contain language required by the Act for the authorization of general obligation debt of the County in the principal amount of up to $50,000,000.00.

The County may use the proceeds of its debt for the purpose of funding County Projects, paying capitalized interest (if any), and paying the cost of issuing its debt. The County acknowledges that it is solely responsible for the payment of its debt, including any and all costs, interest, and fees associated therewith. Ballot language:

"Shall a special one percent (1%) sales and use tax be imposed in the special district consisting of Chatham County for a period of time not to exceed five years and for the raising of not more than an estimated amount of $420,000,000 for transportation purposes? If the imposition of the tax is approved by the voters, such vote shall also constitute approval of the issuance of general obligation debt of Chatham County in the principal amount of $50,000,000 for the above purposes. If the imposition of the tax is approved by the voters, such vote shall also constitute approval of the issuance of general obligation debt of the City of _____ in the principal amount of $_____for the above purposes. If the imposition of the tax is approved by the voters, such vote shall also constitute approval of the issuance of general obligation debt of the City of _____ in the principal amount of $_____for the above purposes."

(b) The County's debt shall be paid first from the proceeds of its portion of the TSPLOST. In the event that there are insufficient TSPLOST collections to pay the debt from its portion of the proceeds, the County shall pay any shortfall attributable to the debt from its general fund (the "Debt Service Payments"). The County covenants that, in order to make the Debt Service Payments when due from its general funds to the extent required, it will exercise its power of taxation to the extent necessary to timely pay any amounts required to be paid hereunder and it will make available and

use for such payments all taxes levied and collected for that purpose together with funds from any other source. The County further covenants and agrees that in order to make funds available for such purpose, it will, in its general revenue, appropriation, and budgetary measures whereby its tax funds or revenues and the allocation thereof are controlled or provided for, include sums sufficient to timely satisfy such Debt Service Payments that may be required to be made from the general funds, whether or not any other sums are included in such measure, until all payments so required to be made shall have been made in full. The obligation of the County to make any payments that may be required to be made from its general funds shall constitute a general obligation of the County and a pledge of full faith and credit of the County to provide the funds required to timely fulfill any such obligation.

(c) The County will be responsible for all facets of the debt issuance and repayment process. The County will select the underwriter, bond counsel, local counsel, etc. The County will endeavor in good faith to be fiscally responsible in minimizing to the extent possible the costs and fees with the debt issuance process.

Section 13. <u>The Cities Debt</u>.

(a) If one or more of the Cities determines general obligation debt of such City is necessary, such City will notify the County of their intentions prior to January 19, 2022, so that language can be included in the TSPOLST election ballot for such purpose. The ballot language for such general obligation debt shall be written as provided in Section 12(a) herein. The Cities will take all actions necessary to call an election to be held in all voting precincts in the Cities, for the purpose of submitting to the voters of the Cities for their approval, the question of whether or not a general obligation debt ("bond") shall be imposed for funding the projects specified in Exhibit A attached hereto.

(b) The Cities may use the proceeds of its debt for the purpose of funding City Projects, paying capitalized interest (if any), and paying the cost of issuing its debt. The Cities acknowledge that it is solely responsible for the payment of its debt, including any and all costs, interest, and fees associated therewith.

(c) The Cities debt shall be paid first from the proceeds of its portion of the TSPLOST. In the event that there are insufficient TSPLOST collections to pay the debt from its portion of the proceeds, the City shall pay any shortfall attributable to the debt from its general fund (the "Debt Service Payments"). The Cities covenants that, in order to make the Debt Service Payments when due from its general funds to the extent required, it will exercise its power of taxation to the extent necessary to timely pay any amounts required to be paid hereunder and it will make available and use for such payments all taxes levied and collected for that purpose together with funds from any other source. The Cities further covenants and agrees that in order to make funds available for such purpose, it will, in its general revenue, appropriation, and budgetary measures whereby its tax funds or revenues and the allocation thereof are controlled or provided for, include sums sufficient to timely satisfy such Debt Service Payments that may be required to be made from the general funds, whether or not any other sums are included in such measure, until all payments so required to be made shall have been made in full. The obligation of the Cities to make any payments that may be required to be made from its general funds shall constitute a general obligation of the Cities and a pledge of full faith and credit of the Cities to provide the funds required to timely fulfill any such obligation.

(d) The Cities will be responsible for all facets of the debt issuance and repayment process. The City will select the underwriter, bond counsel, local counsel, etc. The City will endeavor in good faith to be fiscally responsible in minimizing to the extent possible the costs and fees with the debt issuance process.

Section 14. Expenses. The County shall administer the County TSPLOST Fund to effectuate the terms of this Agreement. Furthermore, the County and the Municipalities shall be jointly responsible on a pro rata basis for the cost of holding the TSPLOST election. The County shall be reimbursed for the Municipalities' share of such costs.

Section 15. Default. The failure of any party to perform its obligations under this Agreement shall constitute an event of default.

Section 16. Liability for Noncompliance. The County and the Municipalities shall comply with all applicable local, State, and Federal statutes, ordinances, rules and regulations. In the event that any Municipality fails to comply with the requirements of the Act (O.C.G.A. § 48-8-260 et seq.), the County shall not be held liable for such noncompliance. No consent or waiver, express or implied, by any party to this Agreement, to any breach of any covenant, condition or duty of another party shall be construed as a consent to, or waiver of, any future breach of the same.

Section 17. Counterparts. This Agreement may be executed in several counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

Section 18. Governing Law. This Agreement and all transactions contemplated hereby shall be governed by and construed and enforced in accordance with the laws of the State of Georgia.

Section 19. Severability. Should any provision of this Agreement or application thereof to any person or circumstance be held invalid or unenforceable, the remainder of this Agreement or the application of such provision to any person or circumstance, other than those to which it is held invalid or unenforceable, shall not be affected thereby, and each provision of this Agreement shall be valid and enforceable to the full extent permitted by law.

Section 20. Entire Agreement. This Agreement embodies and sets forth all the provisions and understandings between the parties relative to the Projects. There are no provisions, agreements, understandings, representations, or inducements, either oral or written, between the parties other than those hereinabove set forth. Any and all prior provisions, agreements, contracts or understandings, either oral or written, between the parties relative to the Projects are hereby rescinded and superseded by this Agreement.

Section 21. Amendments. This Agreement shall not be amended or modified except by agreement in writing executed by the governing authorities of the County and the Municipalities.

Section 22. Notices. All notices, demands or requests required or permitted to be given pursuant to this Agreement shall be in writing and shall be deemed to have been properly given or served and shall be effective on being deposited or placed in the United States mail, postage prepaid and registered or certified with return receipt requested to the addresses appearing below, or when delivered by hand to the addresses indicated below:

Section 23. Retention of Records

The parties agree to retain all records pertaining to the TSPLOST funds for a period of at least four years subsequent to the expiration of the TSPLOST and to make such records reasonably available to each other upon request.

Section 24. Agreement Effective When Executed by the City and County

This Agreement shall be effective when executed by Cities and the County. The County may enter into separate agreements with other Municipalities that are not signatories to this Agreement and other organizations upon such terms as appropriate to insure that funds will be used for TSPLOST eligible projects and meet the requirements of the law. If there is an inconsistency between such agreements and this Agreement regarding the distribution and allocation terms, this Agreement shall govern.

Section 25. Audits

A. During the term of this Agreement, the distribution and use of all TSPLOST proceeds shall be audited annually by an independent certified public accounting firm in accordance with Georgia Law. The County and Cities receiving TSPLOST proceeds shall be responsible for the cost of their respective audits. The County and Cities agree to cooperate with the independent certified public accounting firm in any audit by providing all necessary information.

B. The Cities shall annually provide County its comprehensive annual financial report showing the receipt and use of TSPLOST funds including a Schedule of Projects Funded with Special Sales Tax Proceeds.

Section 26. Notices

All notices, consents, waivers, directions, requests or other instruments or communications provided for under this Agreement shall be deemed properly given when delivered personally or sent by registered or certified United States mail, postage prepaid, as follows:

If to County: Lee Smith,
County
Manager
Chatham
County
P.O. Box 8161
Savannah, GA
31412

If to Thunderbolt: Beth E. Goette

	Mayor Thunderbolt 2821 River Drive Thunderbolt, GA 31404
If to Savannah	Van Johnson Mayor Savannah City Hall, 2nd Floor 2 East Bay Street Savannah, GA, 31401
If to Pooler	Rebecca Benton Mayor City of Pooler 100 SW US HWY 80 Pooler, GA 31322
If to Port Wentworth	Gary Norton Mayor 7224 GA Highway 21 Port Wentworth, GA 31407
If to Garden City	Don Bethune Mayor 100 Central Avenue Garden City, GA 31405
If to Bloomingdale	Ben Rozier Mayor 8 West Hwy 80 Bloomingdale, GA 31302
If to Tybee Island	Shirley Sessions Mayor 403 Butler Avenue Tybee Island, GA 31328
If to Vernonburg	James R. Hungerpiller Mayor P.O. Box 61512 Savannah, GA 31420

Section 27. <u>No Consent to Breach</u>

No consent or waiver, express or implied, by any party to this Agreement, to any breach of any covenant, condition or duty of another party shall be construed as a consent to or waiver of any future breach of the same.

Section 28. Mediation

The County and Cities agree to submit any controversy arising under this Agreement to mediation for a resolution. The parties to the mediation shall mutually select a neutral party to serve as mediator. Costs of mediation shall be shared equally among the parties to the mediation.

(Signatures on the following page)

IN WITNESS WHEREOF, the County and the Cities acting through their duly authorized agents have caused this Agreement to be signed, sealed and delivered for final execution by the County as of the date set forth above.

CHATHAM COUNTY, GEORGIA

By: _____
Chester A. Ellis, Chairman

Attest:_____
Janice Bocook, Clerk of Commission

(Seal)

MAYOR AND COUNCIL OF THE TOWN OF THUNDERBOLT, GEORGIA

By:_____
Ashley Dana Williams, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND ALDERMEN OF THE
CITY OF SAVANNAH,
GEORGIA

By:_____
Van R. Johnson II, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND COUNCIL OF THE CITY OF POOLER,
GEORGIA

By:_____
Rebecca Benton, Mayor

Attest:_ _____
Clerk of Council

(Seal)

MAYOR AND COUNCIL OF THE
GARDEN CITY,
GEORGIA

By:_____
Don Bethune, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND COUNCIL OF THE CITY OF PORT WENTWORTH, GEORGIA

By:_____
Gary Norton, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND COUNCIL OF THE CITY OF TYBEE ISLAND, GEORGIA

By:_____
Shirley Sessions, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND COUNCIL OF THE CITY OF BLOOMINGDALE, GEORGIA

By:_____
Ben Rozier, Mayor

Attest:_____
Clerk of Council

(Seal)

MAYOR AND ALDERMEN OF THE
CITY OF VERNONBURG,
GEORGIA

By:_____
James R. Hungerpiller, Mayor

Attest:_____
Clerk of Council

(Seal)

TOWN OF THUNDERBOLT
PERMIT APPLICATION FOR COMMERCIAL OR BUSINESS OUTDOOR ACTIVITY EVENT OR EVENTS

APPLICANT NAME:_____

BUSINESS NAME:_____

ADDRESS:_____

TELEPHONE: _____

ACTIVITY EVENT
PURPOSE:_____

DATE OR DATES OF EVENT: _____
SPECIFY: DAY OR DAYS: _____

TIME OF EVENT: BEGINS_____ ENDS_____

In the case of an annual event please note the calendar year, or months applying for an ongoing permit:_____

PLEASE CHECK AND NOTE NUMBER(S) THE FOLLOWING IF APPLICABLE:

APPLICANT WILL HAVE THE FOLLOWING PRESENT AT THE ABOVE EVENT:

____ ALCOHOLIC BEVERAGES - REQUIRES LICENSE OR ADDITIONAL PERMIT

____ PORTABLE TOILET/S

____ TENTS, STAGES, ETC.

____ BOOTH/S

____ VENDORS

____ AMUSEMENT TYPE EQUIPMENT

____ BANDS, MUSIC, INSTRUMENTS, ETC.

APPLICANT, OWNER OR INDIVIDUAL SHALL SUBMIT THIS APPLICATION 30 DAYS PRIOR TO EVENT OR EVENTS. ~~AND MUST APPEAR BEFORE THE MAYOR AND TOWN COUNCIL AT THE TOWN MEETING~~

~~**WHEN APPLICATION APPEARS ON THE TOWN MEETING AGENDA.**~~ Mayor and Council will have final ratification discretion for permit approval.

THIS APPLICATION AND PERMIT FEES SHALL BE APPROVED FOR NOT MORE THAN ONE YEAR AT A TIME. APPLICANT MUST APPLY AND PAY ALL PERMIT FEES EACH CALENDAR YEAR.

TOWN OF THUNDERBOLT ORDINANCES
RULES & REGULATIONS
FOR COMMERCIAL OR BUSINESS OUTDOOR ACTIVITY EVENT OR EVENTS

The following Town of Thunderbolt Ordinances, Rules and Regulations do hereby apply and are the sole responsibility of the Applicant, Owner or Individual to comply with:

1. Applicant, Owner, or Individual shall engage the services of an Off-Duty Police Officer or Officers to be present at all times during the course of the Outdoor Activity Event (required when any event that is being held outside the confines of the structure of the building on the property is likely to or does in fact attract more than 20 guests or customers at a time) when alcoholic beverages are sold or distributed.
   Services of a Security Guard or Security Guard Service is not acceptable.
   IF APPLICANT, OWNER OR INDIVIDUAL REFUSES OR DOES NOT ENGAGE THE SERVICES OF AN OFF-DUTY POLICE OFFICER OR OFFICERS THE OUTDOOR ACTIVITY EVENT PERMIT SHALL BE REVOKED FOR 6 MONTHS, WHICH MAY ALSO INCLUDE A FINE OR FINES.

2. Applicant, Owner or Individual shall be responsible for removing Portable Toilets within 3 days following the event or shall be fined in the amount of $100.00 per day per unit until Portable Toilet or Toilets are removed.

   In the event, Applicant. Owner or Individual requires future use of Portable Toilet or Toilets, they shall be responsible for the cleaning, disinfecting, maintenance, and securing the Portable Toilet or Toilets.

3. Applicant, Owner or Individual will be responsible to remove all Tents, Stages, etc. within 3 days following the Outdoor Activity Event or shall be fined in the amount of $100.00 per day until Tents, Stages, etc., have been removed.

4. Applicant, Owner or Individual will be responsible for removing all booths within 3 days following the Outdoor Activity Event or shall be fined in the amount of $50.00 per day per Booth until Booth or Booths have been removed.

5. Applicant, Owner or Individual will be responsible for removing all Amusement Type Equipment within 3 days following the Outdoor Activity Event or shall be fined in the amount of $50.00 per day per Amusement Type Equipment until Equipment has been removed.

6. Applicant, Owner or Individual shall be held responsible for Bands, Instruments,

Music, etc., to abide by the Town of Thunderbolt Noise Ordinance. NO BANDS, INSTRUMENTS, MUSIC, ETC. SHALL BE ALLOWED TO CONTINUE PLAYING AFTER 10:00 PM. IF APPLICANT, OWNER, OR INDIVIDUAL VIOLATES THIS ORDINANCE, THE OUTDOOR ACTIVITY PERMIT SHALL BE REVOKED FOR 6 MONTHS, WHICH MAY ALSO INCLUDE A FINE OR FINES.

7. Applicant, Owner or Individual shall be responsible for cleaning grounds and disposing of all trash, debris, etc. as a result of the Outdoor Activity Event no later than 24 hours following the Event. If Applicant, Owner or Individual has not cleaned and disposed of trash, debris, etc, within 24 hours following the Event they will be fined in the amount of $25.00 per day until all trash, debris, etc. is disposed and grounds are cleaned, plus possible code enforcement fines.

By Signing below, I the Applicant, Owner or Individual applying for this Outdoor Activity Event Permit have read and will comply with the above and all other Town of Thunderbolt Ordinances, if applicable pertaining to Outdoor Activities and Events. A copy of Applicant, Owner or Individual Driver's License is also attached.

_____ _____
Applicant, Owner or Individual Witness

_____ _____
Business Notary Public

_____
Date_____ Notary Public Stamp & Seal

RECEIVED BY: _____
Town Official and Title

INDEMNIFICATION AGREEMENT AND ACCEPTANCE TO ADHERE TO APPLICATION REQUIREMENTS

I, individually and as the Agent representing the Event Organization, do hereby agree to indemnify and hold harmless the Town of Thunderbolt, Georgia, its officers, agents, employees, officials, and contractors from and against any and all loss, damage, claim, demand, liability or expense by reason of any damage or injury to property or person which may be claimed to have arisen as a result of or in connection with the occupancy or use of listed event premises during the time period of said event.

Such obligation to indemnify and hold harmless shall continue notwithstanding any negligence or comparative negligence on the part of the Town of Thunderbolt relating to such loss or damage, except for loss or damage arising from the sole negligence or willful misconduct or gross negligence of the Town, and shall include all costs, expenses and liabilities incurred by the Town in connection with any such claim, suit, action or cause of action, including the investigation thereof and the defense of any action or proceeding brought thereon and any other judgment or decree which may be entered in any such action or proceeding or as a result thereof. These provisions

shall survive the expiration or earlier termination of the use of premises. Nothing in this Agreement shall be construed to affect in any way the Town's rights, privileges, and immunities as set forth in Georgia Statues and/or the Constitution of the State of Georgia.

Representative Signature;_____ Date:_____

PERMIT FEES:

ONE DAY EVENT: $ 50.00 – Resident/Business $150.00- Non Resident/Non Business
*SPECIAL ONE DAY EVENT - $500.00 (require closing of streets, additional preparation of the Town's police officers, firefighters, employees, agents or contractors; additional fees may be assessed to cover the Town's costs for assistance or services)

TWO DAY EVENT: $ 100.00 – Resident/Business $200.00 – Non Resident/Non Business

THREE OR MORE
DAY EVENT: $ 150.00 – Resident/Business $ 450.00 – Non Resident/Non Business

Note: Request of Waiver of Fee(s) requires the completion of a Waiver of Fee Form to be attached to the permit application and must be approval of Mayor and Council.

****** PERMIT FEE MUST BE PAID AT THE TIME OF APPLICATION******
FAILURE TO SUBMIT PAYMENT ALONG WITH APPLICATION SHALL RESULT IN THE APPLICATION NOT BEING CONSIDERED FOR APPROVAL BY THE TOWN OF THUNDERBOLT.

PERMIT FEE REFUND:

THE TOWN OF THUNDERBOLT WILL REFUND THE PERMIT FEE IF THE TOWN IS NOTIFIED WITHIN AT LEAST 5 DAYS PRIOR TO THE EVENT BEING CANCELLED AND/OR 5 DAYS AFTER REQUESTED DAY OF THE EVENT, IF CANCELLED: SEE THE FOLLOWING:
ONE DAY EVENT: FULL REFUND, IF EVENT CANCELLED AND TOWN NOTIFIED OF CANCELLATION.
TWO DAY OR MORE EVENTS: ONE –THIRD OF THE PERMIT FEE REFUNDED, IF ONE OR MORE DAYS OF EVENT CANCELLED AND TOWN NOTIFIED OF CANCELLATION.
NO PARTIAL OR FULL PERMIT FEE WILL BE REFUNDED UPON PERMIT BEING REVOKED AS A RESULT OF APPLICANT, OWNER OR INDIVIDUAL BEING IN VIOLATION OF TOWN OF THUNDERBOLT ORDINANCES OR RULES AND REGULATIONS.

THE ATTACHED APPLICATION FOR AN OUTDOOR ACTIVITY EVENT PERMIT HAS BEEN APPROVED THIS _____ DAY OF _____, 20___.
BY THE TOWN OF THUNDERBOLT MAYOR AND TOWN COUNCIL WHOSE NAMES AND SIGNATURES ARE LISTED BELOW OR BY THE TOWN ADMINISTRATOR WHOSE SIGNATURE IS LISTED BELOW.

_____ _____
Mayor Town Administrator

_____
Councilmember

_____
Councilmember

_____
Councilmember

_____
Councilmember

_____
Councilmember

_____
Councilmember

STR Justification of Fee's

Initial Registration

Staff time to process

Permitting Clerk – 3 hours = $120

Finance – 1 hour + $100

Utility Clerk – 1 hour + $25

Total = $245

Ongoing Costs

Code Enforcement 3 hours - $75

Host Compliance + $150

Tax differentiation + $50

QS1 + $50

Public Safety + $30

Business License Fee + $100

Total = $455

Staff time plus ongoing costs = $700

Annual Recertification

Staff Time

Permitting Clerk – 1.5 hours = $60

Finance – .5 hour + $50

Utility Clerk – .75 hour + $15

Total = $125

Ongoing Costs

Code Enforcement 3 hours - $75

Host Compliance + $150

Tax differentiation + $50

QS1 + $50

Public Safety + $30

Business License Fee + $100

Total = $455

Staff time + ongoing costs = $580

DAVENPORT & COMPANY

Town of Thunderbolt, Georgia

Utility Rate Update

January 2022

Member NYSE | FINRA | SIPC

Base Rate Analysis – Water

Residential Water Rates								
Tier Breakdown			Number of Customers	Current Base Charge	Current Base Annual Revenues	Adjusted Base Charge	Adjusted Base Annual Revenues	Extra Annual Revenues Produced
Tier 1	-	1,250	160	$10	$19,200	$12	$23,040	$3,840
Tier 2	1,251	2,500	245	10	29,400	20	58,800	29,400
Tier 3	2,501	5,000	360	10	43,200	20	86,400	43,200
Tier 4	5,001	10,000	181	10	21,720	30	65,160	43,440
Tier 5	10,001	15,000	28	10	3,360	40	13,440	10,080
Tier 6	15,001	1,000,000	11	10	1,320	50	6,600	5,280
Total			**985**		**$118,200**		**$253,440**	**$135,240**

Commercial Water Rates								
Tier Breakdown			Number of Customers	Current Base Charge	Current Base Annual Revenues	Adjusted Base Charge	Adjusted Base Annual Revenues	Extra Annual Revenues Produced
Tier 1	-	1,250	43	$10	$5,160	$30	$15,480	$10,320
Tier 2	1,251	2,500	6	10	720	40	2,880	2,160
Tier 3	2,501	5,000	16	10	1,920	50	9,600	7,680
Tier 4	5,001	10,000	11	10	1,320	100	13,200	11,880
Tier 5	10,001	15,000	5	10	600	200	12,000	11,400
Tier 6	15,001	1,000,000	20	10	2,400	300	72,000	69,600
Total			**101**		**$12,120**		**$125,160**	**$113,040**

Senior Water Rates								
Tier Breakdown			Number of Customers	Current Base Charge	Current Base Annual Revenues	Adjusted Base Charge	Adjusted Base Annual Revenues	Extra Annual Revenues Produced
Tier 1	-	1,250	4	$10	$480	$10	$480	$0
Tier 2	1,251	2,500	8	10	960	10	960	0
Tier 3	2,501	5,000	4	10	480	20	960	480
Tier 4	5,001	10,000	4	10	480	30	1,440	960
Tier 5	10,001	15,000	1	10	120	40	480	360
Tier 6	15,001	1,000,000	0	10	0	50	0	0
Total			**21**		**$2,520**		**$4,320**	**$1,800**

ERU Water Rates								
Tier Breakdown			Number of Customers	Current Base Charge	Current Base Annual Revenues	Adjusted Base Charge	Adjusted Base Annual Revenues	Extra Annual Revenues Produced
N/A			**296**	N/A	N/A	**$20**	**$71,040**	**$71,040**

Total	**$321,120**

Note: Davenport used data from 2020 Utility Rate Study to develop these projections.

Base Rate Analysis – Sewer

Residential Sewer Rates								
Tier Breakdown			Number of Customers	Current Base Charge	Current Base Annual Revenues	Adjusted Base Charge	Adjusted Base Annual Revenues	Extra Annual Revenues Produced
Tier 1	-	5,000	762	$22	$201,168	$32	$292,608	$91,440
Tier 2	5,001	10,000	181	22	47,784	35	76,020	28,236
Tier 3	10,001	25,000	35	22	9,240	40	16,800	7,560
Tier 4	25,001	1,000,000	5	22	1,320	50	3,000	1,680
Total			**983**		**$259,512**		**$388,428**	**$128,916**

Commercial Sewer Rates								
Tier Breakdown			Number of Customers	Current Base Charge	Current Base Annual Revenues	Adjusted Base Charge	Adjusted Base Annual Revenues	Extra Annual Revenues Produced
Tier 1	-	5,000	65	$22	$17,160	$40	$31,200	$14,040
Tier 2	5,001	10,000	11	22	2,904	60	7,920	5,016
Tier 3	10,001	25,000	11	22	2,904	100	13,200	10,296
Tier 4	25,001	1,000,000	11	22	2,904	120	15,840	12,936
Total			**98**		**$25,872**		**$68,160**	**$42,288**

Senior Sewer Rates								
Tier Breakdown			Number of Customers	Current Base Charge	Current Base Annual Revenues	Adjusted Base Charge	Adjusted Base Annual Revenues	Extra Annual Revenues Produced
Tier 1	-	5,000	16	$22	$4,224	$22	$4,224	$0
Tier 2	5,001	10,000	4	22	1,056	25	1,200	144
Tier 3	10,001	25,000	1	22	264	35	420	156
Tier 4	25,001	1,000,000	0	22	0	40	0	0
Total			**21**		**$5,544**		**$5,844**	**$300**

ERU Sewer Rates								
Tier Breakdown			Number of Customers	Current Base Charge	Current Base Annual Revenues	Adjusted Base Charge	Adjusted Base Annual Revenues	Extra Annual Revenues Produced
N/A			**296**	N/A	N/A	**$32**	**$113,664**	**$113,664**

Total	**$285,168**

Note: Davenport used data from 2020 Utility Rate Study to develop these projections.

Tier Breakdown Analysis – Water

Residential Water Rates					
	Tier Breakdown			Perecent Change	Extra Annual Revenues Produced
Tier 1	-	1,250	$0.95	10.00%	$122
Tier 2	1,251	2,500	1.40	10.00%	781
Tier 3	2,501	5,000	1.79	13.00%	3,583
Tier 4	5,001	10,000	2.18	15.00%	4,740
Tier 5	10,001	15,000	2.67	20.00%	2,212
Tier 6	15,001	1,000,000	3.08	25.00%	3,151
Total					**$14,589**

Commercial Water Rates					
	Tier Breakdown			Perecent Change	Extra Annual Revenues Produced
Tier 1	-	1,250	$0.95	15.00%	$37
Tier 2	1,251	2,500	1.40	15.00%	32
Tier 3	2,501	5,000	1.79	15.00%	184
Tier 4	5,001	10,000	2.18	25.00%	505
Tier 5	10,001	15,000	2.67	30.00%	591
Tier 6	15,001	1,000,000	3.08	50.00%	22,573
Total					**$23,923**

Senior Water Rates					
	Tier Breakdown			Perecent Change	Extra Annual Revenues Produced
Tier 1	-	1,250	$0.95	10.00%	$4
Tier 2	1,251	2,500	1.40	10.00%	26
Tier 3	2,501	5,000	1.79	13.00%	34
Tier 4	5,001	10,000	2.18	15.00%	101
Tier 5	10,001	15,000	2.67	20.00%	69
Tier 6	15,001	1,000,000	3.08	25.00%	0
Total					**$233**

Total	**$38,745**

Note: Davenport used data from 2020 Utility Rate Study to develop these projections. Davenport has proportionally assumed the per gallon charging rate based off existing rates.

Tier Breakdown Analysis – Sewer

Residential Sewer Rates					
	Tier Breakdown			Percent Change	Extra Annual Revenues Produced
Tier 1	-	5,000	$6.04	10.00%	$13,322
Tier 2	5,001	10,000	6.43	10.00%	9,318
Tier 3	10,001	25,000	6.83	15.00%	5,741
Tier 4	25,001	1,000,000	7.22	30.00%	5,854
Total					$34,235

Commercial Sewer Rates					
	Tier Breakdown			Percent Change	Extra Annual Revenues Produced
Tier 1	-	5,000	$6.04	15.00%	$953
Tier 2	5,001	10,000	6.43	15.00%	894
Tier 3	10,001	25,000	6.83	25.00%	3,458
Tier 4	25,001	1,000,000	7.22	35.00%	54,987
Total					$60,292

Senior Sewer Rates					
	Tier Breakdown			Percent Change	Extra Annual Revenues Produced
Tier 1	-	5,000	$6.04	10.00%	$223
Tier 2	5,001	10,000	6.43	10.00%	198
Tier 3	10,001	25,000	6.83	15.00%	132
Tier 4	25,001	1,000,000	7.22	20.00%	0
Total					$553

Total	$95,080

Note: Davenport used data from 2020 Utility Rate Study to develop these projections. Davenport has proportionally assumed the per gallon charging rate based off existing rates.



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Version 01/13/2014 CH/DJG/RC/CR

BETH E. GOETTE
MAYOR

ROBERT L. MILIE
TOWN ADMINISTRATOR

DEATRE N. DENION
CLERK/ZONING ADMINISTRATOR

CHARLES W. BARROW
TOWN ATTORNEY

COUNCIL MEMBERS

DAVID P. CRENSHAW

EDWARD M. DROHAN, III

JOHN HENRY

DANA WILLIAMS

LAWRENCE WARD

BROOKS BARBAREE

To be on the agenda –

Atlantic Waste – State of Thunderbolt Sanitation
Axon Enterprises – TASER & Body Worn Camera Contract
McGriff Ins. Presentation – Property & Liability
Library Lease
T-SPLOST MOU/IGA – If the County Attorney sends the revised one
GMA Pension Secretary
Annual Permits, if necessary, per the Mayor
Chuck V. – Town Hall and Park Beautification
Eric IT Consultant on ongoing work & Cyber Security Plan
Water Rates if prepared
Mayor Pre Tem Vote

Jan. Meeting 2022 – Monthly Administrator Report

Citizen issues –

-Continued work on Bannon Drive speed and truck traffic issues – an open dialogue with residents and working with business and the trucking companies

T-SPLOST – Awaiting the final revised IGA from the County - some specific requests are resurfacing of 14 miles of road off center line (request is at a higher cost adjusting for inflation, and for a higher quality road than previously employed) – striping – replacement of sidewalks, new sidewalks, and ADA compliance on others – intersection safety modifications – exploration of multi-use path along the county canal from Bonaventure to Shell Rd.

-Note – the draft IGA/MOU will be presented to you for approval to enter in to the agreement

-Note – the County has been advised of our desire to have the option to obtain a three-million-dollar bond for the referendum per previous Council meeting

Town Hall –

Exterior – Palm trees and low-lying foliage as well as ground cover has been installed – last is to dig up the small section in front of the water payment box and fill in with shells

Roof –The roof has been soft pressure washed – all suspect areas found have been repaired – and or addressed – no leaks have been noted to date – two more coverall coats will be applied when we may expect a consecutive series of days that will not go below 45 degrees – then suspect areas will receive a third application if necessary

Around Town –
Thomson Park –DPW, Park Consultant Chuck, and Ms. Sue Derosa worked on rejuvenating the Butterfly Garden– we are in process of identifying which plants to remove – removing them – planting some new plants – mulching – The Dock railing and suspect pillars have been replaced to ensure the safety of occupants on the dock – wood will dry for 8 weeks and we can move on staining the wood

Isle of Armstrong – One contoured swale has been placed in service – desired results were achieved – will finish with stones and move onto completion of one to two a month on in the community – DPW Director has ordered more supplies to begin with addressing more of these matters

Town wide – Pothole project following a grid pattern is still on time and in process

Grants –

- A Sewage Force Main replacement grant was submitted to the Georgia Office of Planning & Budget via the State Fiscal Relief Fund. The grant request was for $5,438,081 to which Thunderbolt will add $960,189 from our ARPA funds to finance the replacement of our sewer Force Main (12,114 linear feet) for an estimated total cost of $6,398,270. That is, Thunderbolt will provide 15% of project costs while requesting financing for 85%. By replacing the aged and vulnerable line, Thunderbolt will avoid potential health, environmental impacts and other property damage caused by breaks and leaks. Have heard no feedback and is still awaiting committee review – Mayor Williams has also reached out to Gov. Kemp on the matter

- We have submitted an application for the public safety-first responder grant and it is still in process this is $1,000 per career police officer or fire fighter, as well as $300 for volunteer fire fighters

- Still in review process via vendor - Phase II of Solar assessment to determine viability of Solar energy on Town buildings first then possibly move on a program being implemented by Savannah to install Solar if viable and council approved – follow up with vendor scheduled for beginning of Feb.

- Assistance to Fire Fighter Grant Portal opens on Nov. 8th, the intent is to apply for at minimum all new personal protective equipment to replace expired or near expiration date of PPE – this has been submitted and awaiting results – expected 2nd quarter of 2022

-In process of reviewing Ga Community Development Block Grants and webinar on 1/11 & 1/12 to address blighted areas, neighborhood improvement, and economic development grant funding opportunities (Town Goal 2022)

-In process of reviewing Ga Safe Sidewalks and DOT funding grants to move on 2022 goal of increasing our ADA compliance throughout the Town

Process Improvement –
Current CPA firm familiar with our process somewhat is working to address any finance matters in the interim as well as provide feedback on our systems and procedures in place for things ranging from payroll to reporting etc…

QS1 –
The company continues to show expanded ways to utilize the software, but customer service as reported appears to be a hinderance. I ask that Ms. Shannon Brett from the CPA firm speak on the topic lightly.

Town Departments –

Finance –

-Please see attached reports if available plus Ms. Brett assessment

Code Enforcement –

- Court has begun hearing cases
- Several stop work orders have been addressed as permits were not obtained – including various driveway and roofing projects
- With the grass season slow down – focus is shifting to debris – trash – broke down cars etc…

Police –

- See attached report
- Follow up previous meeting – Ins. Costs & certain funding opportunities regarding body cameras etc..
- Moving towards hiring of a part time police officer to serve as second officer during certain times, as well as traffic enforcement and ensure no overtime strain on career staff
- Moving on transferring Code Enforcement to serve under the police department – will assist with subpoena, tracking etc…

Fire -

- See attached report
- Several special projects around Town addressed and referenced in report – roof – Tompson Park deck

DPW-

- See attached report
- Did have a hit-and-run on a hydrant that we do have the bus company information for, a subpoena has been issued for the driver, and we will work to ensure cost recovery for DPW time, materials, water loss, and the contractor to fully repair – A cost recovery claim has been submitted to the tour company and they are turning it over to their insurance carrier –
    - The total cost to repair the hydrant, pipes, and water leak was $5,036.21
    - Breakdown is – Overtime rate for on call DPW employee 3 hours - $90.00
    - - Estimated Water Loss - $14.00
    - - Contractor to repair - $4,932.21

INTER OFFICE CORRESPONDENCE

TO: Town Administrator, Robert Milie

FROM: Chief Sean Clayton

DATE: January 3, 2022

SUBJECT: Monthly Report for December, 2021

POLICE DEPARTMENT:

Sergeant Runyon made an arrest for aggravated assault where the suspect shot at the victim. The victim in this case was not injured. Officer Jones has felony warrants forthcoming for an individual who is being charged with Porch Piracy, and also made another arrest for possession of Heroin. Officer Wilson conducted a traffic stop which resulted in the arrest for Possession of Methamphetamine. During another traffic stop, Officer Wilson arrested a person for possession of a stolen firearm, and Sergeant Runyon and I are currently investigating a sexual assault case involving a minor. Since last Council Meeting, officers were given a copy of the "no thru trucks" ordinance and have been monitoring the Bannon Drive area for trucks violating the ordinance. After speaking with officers, the trucks that have been on Bannon Drive were making deliveries in accordance to the new ordinance, so no warnings had to be issued during the month of December.

DEPARTMENT MONTHLY ACTIVITY REPORT

INCIDENT REPORTS	34
ACCIDENT REPORTS	6
MISC. REPORTS	4
DOMESTIC VIOLENCE CASES	2
D.U.I. ARRESTS	1
PERSONS ARRESTED	13
TRAFFIC CITATIONS	98
WRITTEN WARNINGS	30
ANIMAL COMPLAINTS	0

2020/2021 Monthly Comparison

	Jan		Feb		Mar		Apr		May		Jun		Jul		Aug		Sep		Oct		Nov		Dec		Yearly	
Classification of Offenses	20	21	20	21	20	21	20	21	20	21	20	21	20	21	20	21	20	21	20	21	20	21	20	21	2020	2021
Homicide	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
Sexual Assault	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	1	1	1
Robbery	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	1	0	0	0	0	0	0	0	1	0
Agg Assault	0	1	0	1	1	0	0	0	1	1	0	1	0	0	1	0	1	0	0	0	0	0	0	1	2	5
Simple Assault	2	2	1	0	2	2	3	1	0	2	2	1	2	4	2	0	0	1	1	1	0	3	0	2	15	19
Burglary	0	0	0	0	0	0	0	1	0	0	0	0	1	0	0	0	0	0	0	1	1	1	0	1	2	4
Larceny-Theft	6	2	3	5	2	11	2	0	2	3	4	2	1	1	1	3	3	3	3	1	2	2	1	3	30	36
Auto Theft	0	0	0	0	0	0	0	0	0	1	0	1	1	0	0	1	0	1	1	0	0	0	1	0	2	4
	9	5	4	6	4	13	5	2	2	7	6	5	5	5	4	4	5	5	5	3	3	6	1	8	53	69

MUNICIPAL COURT

The fees and fines the Court collected for the month of December were $21,100.00.



MAYOR AND COUNCIL REPORT

December Report

Mission Statement

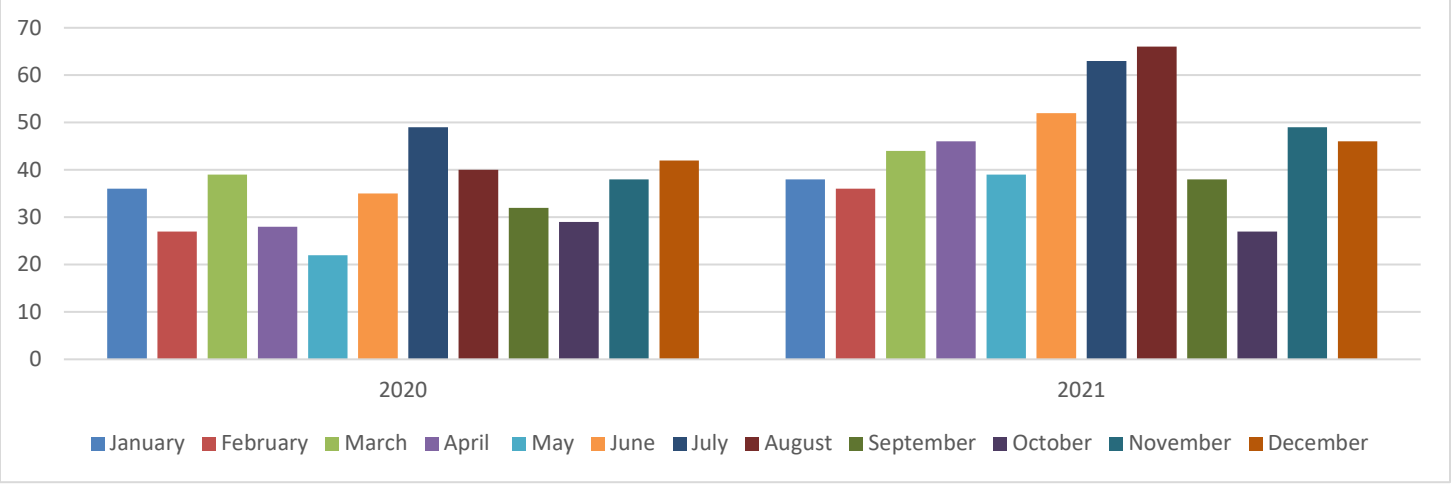
"The mission of the Thunderbolt Fire Department is to minimize loss of life, property and environment in the Town of Thunderbolt from both natural and man-made disasters, life threatening situations and to assist other emergency agencies. We will achieve this mission through professional/progressive training and fire education while providing first class services to our community."

Prepared by:
Andrew Bateman
Chief of Thunderbolt Fire Department

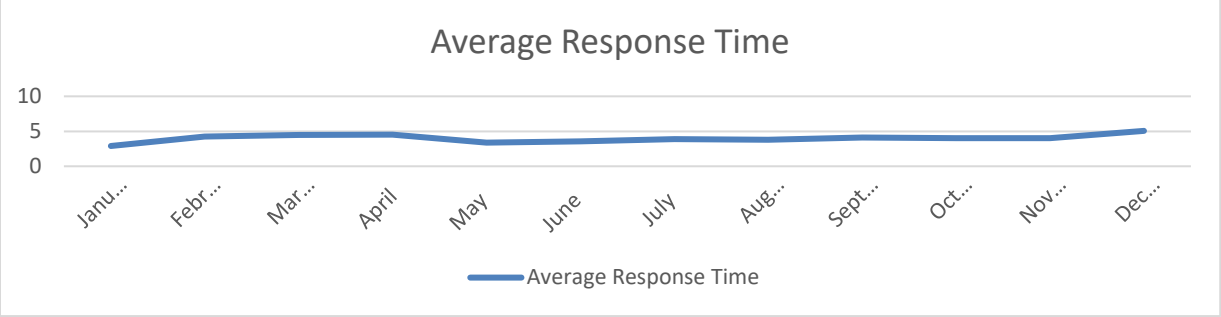
Thunderbolt Fire Incident Breakdown

	JAN	FEB	MAR	APR	MAY	JUN	JUL	AUG	SEPT	OCT	NOV	DEC	YTD
Fire Response	18	15	23	24	15	22	19	18	12	4	20	6	196
Rescue & EMS Incidents	20	23	21	22	25	32	44	48	26	23	29	40	353
Grand Total	38	38	44	46	40	54	63	66	38	27	49	46	549

Call Comparison Between 2020 & 2021



2021 shows an increase in emergency responses by 31.6% when compared to 2020



Department News

Highlighted Incidents:

- No Major Incidents to Report

Highlighted Projects Completed:

- Continue Fogging/Disinfecting Town Facilities and as requested
- Continue to work on new upgrades for Town Hall
- AFG Grant for Tender and PPE submitted. (No response at this time)
- Continue work on Town Hall Roof
- Needed Repairs complete at Thompson Park Pier (Replaced broken pickets and Replacement of Top cap). Further repairs scheduled to tighten on side rails.

Apparatus:

- Squad 51 in Service (Seagrave corrected all issues)
- Completed all required Maintenance on Apparatus for 2021
- Working on additional repairs needed for apparatus

Thunderbolt Fire Department
December Training

Online Training: **7.5 Hours**
Consisted of a variety of topics to include a few of the following-

A. **Command System**
B. **Confined Space**
C. **1410 Drills**

Company Training: **20.6 Hours**
Topics to highlight include the following:

A. **Ground Ladders**
B. **Water Supply**
C. **Ropes and Knots**

Official Newsletter of Drug Free Work Places: **4 Hours**
(.5 hours for each Article read)

A. **October 2019 Vol. 20 No. 12**

Outside Training: **0 Hour**

Total 2021 Hours: 753.65 Hours

MONTHLY STATUS REPORT

FOR

PUBLIC WORKS

FOR THE

TOWN OF THUNDERBOLT

DECEMBER 2021

Special Interest

Water Treatment Reports

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 3

Sampling Location: ***Nellie Johnson Park***
Sample Type: ***Routine***
Lab Sample No.: **113613**

Collected by Oscar Crosby
Sample Collected:12/7/2021 09:40
Lab Received: 12/7/2021 10:29
Chlorine Residual: **1.30**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	12/7/2021 10:38	12/8/2021 13:00

Results:

Total Coliform: Absent
E. Coli: Absent

Detection limits: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present- *Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 12/8/2021

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 2

Sampling Location: ***3213 Pierce***
Sample Type: ***Routine***
Lab Sample No.: **113612**

Collected by Oscar Crosby
Sample Collected:12/7/2021 10:05
Lab Received: 12/7/2021 10:29
Chlorine Residual: **1.50**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	12/7/2021 10:38	12/8/2021 13:00

Results:

Total Coliform: Absent
E. Coli: Absent

Detection limits: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present- *Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 12/8/2021

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 1

Sampling Location: ***2610 Dogwood***
Sample Type: ***Routine***
Lab Sample No.: **113611**

Collected by Oscar Crosby
Sample Collected:12/7/2021 09:25
Lab Received: 12/7/2021 10:29
Chlorine Residual: **0.30**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	12/7/2021 10:38	12/8/2021 13:00

Results:

Total Coliform: Absent
E. Coli: Absent

Detection limits: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present- *Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 12/8/2021

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

Water Distribution Reports

Thunderbolt Meter

Public Works _____ 1,800 gals.

Fire Department _____ 11,900 gals.

Senior Citizens _____ 5,130 gals.

Town Hall _____ 12,100 gals.

Museum _____ 0 gals.

Thompson Park _____ 0 gals.

Honey Park _____ 90 gals.

Nellie Johnson Park _____ 270 gals.

Cesoroni Ball Field _____ 30 gals.

Downing St. Lift Station
Gross Pumped _____ Pending

Savannah Water Usage _____ 8,585,391 gals.

Line Flushing _____ 0 gals.

Chlorides: Well #3 10 ppm Well #4 50 ppm

State of Georgia
Department of Natural Resources
Environmental Protection Division

ENVIRONMENTAL PROTECTION DIVISION
DRINKING WATER PROGRAM
GROUND WATER OPERATION REPORT

Drinking Water Permitting & Engineering
2 Martin Luther King Jr. Drive Suite 1362 East
Atlanta, GA 30334

System Name: Thunderbolt Water System
Plant Name: Well #4
County: Chatham
Summary of (MONTH) DECEMBER

WSID #: GA- 510006
Plant ID# :
Permit # : 510006
(YEAR): 2021

Day of Month	Raw Water Treated* (Gallons)	Treated Water Pumped to Distribution System* (Gallons)	Amount of Fluoride Used (lb or gal)	Finished Water Analysis			Remarks
				Chlorine Free Available (mg/L)	Fluoride (mg/L)	pH Value (S.U.)	
1	0	0		1.37		8.2	
2	0	0		1.47		8.3	
3	0	0		1.28		8.3	
4	0	0		1.31		8.2	
5	0	0		1.48		8.3	
6	0	0		1.40		8.2	
7	0	0		1.32		8.2	
8	0	0		1.56		8.1	
9	0	0		1.65		8.1	
10	0	0		1.47		8.1	
11	0	0		1.42		8.1	
12	0	0		1.05		8.1	
13	0	0		1.13		8.1	
14	0	0		1.51		8.2	
15	0	0		1.86		8.1	
16	0	0		1.41		8.1	
17	0	0		1.27		8.1	
18	0	0		1.20		8.1	
19	32,082	32,082		0.98		8.0	
20	0	0		0.94		8.1	
21	14,828	14,828		1.13		8.1	
22	0	0		1.00		8.2	
23	25,304	25,304		1.57		8.2	
24	0	0		0.95		8.2	
25	0	0		0.94		8.3	
26	0	0		0.69		8.2	
27	0	0		0.73		8.2	
28	27,069	27,069		1.19		8.2	
29	0	0		1.23		8.2	
30	48,963	48,963		1.06		8.2	
31	41,791	41,791		0.77		8.2	
Total	190,037	190,037	0	38.34	0	253.20	
Days	31	31	0	31	0	31	
Avg.	6,130	6,130	0.00	1.24	0.00	8.17	
Max.	48,963	48,963	0	1.86	0	8.3	
Min.	0	0	0	0.69	0	8	

*Treated and/or Pumped values should be reported as a total for a 24 hour period beginning 0000-2400.
(e.g., Take reading at same time each day so that it is for 24 hours)

Type Fluoride Compound Used: n/a
Type Chlorine Compound Used: Sodium Hypochlorite

I certify that all information contained on this form is correct and true to the best of my knowledge.

Signature:
Title: Public Works Manager
Print Name: Oscar Crosby II
Certification Class: III
Phone #: 912-644 7999

EPD 1.6 Revised Dec 2003

State of Georgia
Department of Natural Resources
Environmental Protection Division

ENVIRONMENTAL PROTECTION DIVISION
DRINKING WATER PROGRAM
GROUND WATER OPERATION REPORT

Drinking Water Permitting & Engineering
2 Martin Luther King Jr. Drive Suite 1362 East
Atlanta, GA 30334

System Name: Thunderbolt Water System
Plant Name: Well # 3
County: Chatham
Summary of (MONTH) DECEMBER

WSID #: GA- 510006
Plant ID# :
Permit # : 510006
(YEAR): 2022

Day of Month	Raw Water Treated* (Gallons)	Treated Water Pumped to Distribution System* (Gallons)	Amount of Fluoride Used (lb or gal)	Finished Water Analysis: Chlorine Free Available (mg/L)	Finished Water Analysis: Fluoride (mg/L)	Finished Water Analysis: pH Value (S.U.)	Remarks
1	0	0		0.00	0.0	0.0	No water withdrawn from the ground.
2	0	0					
3	0	0					
4	0	0					
5	0	0					
6	0	0					
7	0	0					
8	0	0					
9	0	0					
10	0	0					
11	0	0					
12	0	0					
13	0	0					
14	0	0					
15	0	0					
16	0	0					
17	0	0					
18	0	0					
19	0	0					
20	0	0					
21	0	0					
22	0	0					
23	0	0					
24	0	0					
25	0	0					
26	0	0					
27	0	0					
28	0	0					
29	0	0					
30	0	0					
31	0	0					
Total	0	0	0	0.00	0	0.00	
Days	31	31	0	1	1	1	
Avg.	0	0	0.00	0.00	0.00	0.00	
Max.	0	0	0	0	0	0	
Min.	0	0	0	0	0	0	

*Treated and/or Pumped values should be reported as a total for a 24 hour period beginning 0000-2400.
(e.g., Take reading at same time each day so that it is for 24 hours)

Type Fluoride Compound Used: n/a
Type Chlorine Compound Used: Sodium Hypochlorite

I certify that all information contained on this form is correct and true to the best of my knowledge.

Signature:
Print Name: Oscar Crosby II
Title: Public Works Manager
Certification Class: III
Phone #: 912-644 7999

EPD 1.6 Revised Dec 2003

Comprehensive Work Order Report